

N.S. PRICE 20 CENTS
E.

JANUARY 1925

THE BLUE BOOK

MAGAZINE



Beginning
J.S. Fletcher's
latest and greatest
mystery
novel. Also
Detective Poirot
Free lances
in Diplomacy
and
Easy Street Experts

N.S. PRICE 20 CENTS
E.

JANUARY 1925

THE BLUE BOOK

MAGAZINE



Beginning
J.S. Fletcher's
latest *and* greatest
mystery
novel. *Also*
Detective Poirot
Free lances
and in Diplomacy
Easy Street Experts

The Project Gutenberg eBook of Gun play

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Gun play

Author: Michael J. Phillips

Release date: July 29, 2024 [eBook #74150]

Language: English

Original publication: New York: The Consolidated Magazines Corporation,
1925

Other information and formats: www.gutenberg.org/ebooks/74150

Credits: Roger Frank and Sue Clark

*** START OF THE PROJECT GUTENBERG EBOOK GUN PLAY ***



GUN PLAY

By Michael J. Phillips

Wherein a nickel-plated bad-man runs up against a chap of the blue-steel variety, and powder is burned.

“Yip! Yip-yip-yip yoo—ooo!”

The thick-shouldered counter man, who looked as though he might have been a bartender once, raised his head with a smile meant to placate and excuse. He nodded toward the flyspecked window.

“That there’s young Chihuahua Pete,” he explained, mopping the barlike lunch counter. “With a coupla shots o’ hootch under his belt! Just don’t mind him. He’s all right unless somebody steps on his toes.”

The five or six men sitting on the tall stools, eating a hasty midday lunch while the stage driver changed a tire, turned curiously at the yells and the explanation. They saw a pinto horse, irregularly patched with brown and white, coming out of the sagebrush and greasewood to the southward at a dead run. A “warbag,” in which the cowboy carries his personal belongings when he changes jobs, bounced wildly on either side. There was a rifle in the boot under the rider’s left leg.

The rider was tall, young and cone-hatted. A purple silk handkerchief was knotted at the back of his neck. The free corners fluttered under his chin above a red shirt which was blocked off with black lines. He wore a vest, without which a cowpuncher considers himself only half clad, but no coat. His chaps of cowhide were luxuriantly covered with black hair.

The spotted horse did his best. Nevertheless the driver beat him right and left and fore and aft with a quirt. Supple-wristed, he swung it viciously. The pinto, pink nostrils stretched wide, swooped like a swallow over the railroad track a few yards in front of the Last Chance.

“Suppose some one steps on his toes?” queried a traveling man in a derby.

“He’s a shootin’ fool,” returned the waiter, with a final sweep across the counter. He spoke in an undertone, for the wild rider, with a final “Yip-yip-yip!” pulled his horse to a stop in a cloud of dust at the door. “Killed two men the last three years. Got off on self-_dee_-fense.”

“Whee-ee-ee!” The rider stepped down lightly as a dancer, dropped the reins over the panting pinto’s head, and walked to the open door. His black boots were absurdly small and high-heeled. He was pigeon-toed and bow-legged. He strutted slouchily. A cartridge-belt, filled to the last loop, encircled his slim waist and sagged to the holster on his right thigh.

The holster held a nickeled, bone-handled, frontier-type revolver, its curving hammer gleaming in the sunlight. The gun was of heavy caliber. Here was a Westerner who took no stock in the automatic, apparently.

He leaned against the door-jamb for a moment, surveying the party within—a handsome youth, but with a thin-lipped mouth given too readily to sneering. His eye, the cool, keen gray eye of the killer, never opened very widely, turned but little, yet saw everything.

“Hello, Sam, yo’ old polecat!” he greeted the man behind the counter. “Rustle me a quart of moonshine. And good stuff, too, or I’ll come back and brand yo’.”

Sam Turner smiled nervously. Everybody in Rodeo and vicinity knew the lunch-counter as only a mask for his real occupation, which was selling bootleg stuff. But he hated having it bellowed to the world. Even one of the harmless-looking gang in front of him might be a dry agent. His reply was intended to turn the subject.

“Hello, Pete. You leavin’ the Bar-X?”

The cowpuncher grinned. “Leavin’ ’em flat. McCaleb got gabby because I take a drink, the—” His profanity was more impressive because it was low-voiced and drawled. “I beat him up with my six-gun and come away.”

He strolled along the line of stools. At the lower end on the last stool sat a mild-appearing little man of perhaps fifty. He wore olive-drab cotton clothes, belted jacket and trousers, and a floppy-brimmed, homely brown canvas hat. His eyes were protected by sun-glasses.

“Come on, you sawed-off, climb down,” commanded the youth.

“Who, me?” queried the little man. “Why should I?”

“Because I tell you to,” retorted Chihuahua, a nasty smile on his lips, a scowl on his brow. “I admire to set down on that stool. I’m tired o’ standin’.”

The other smiled amiably. “Aw, forget it,” he advised.

As he took his empty cup from his lips, Chihuahua Pete, still with the sneering, contemptuous grin on his face, laid an ungentle hand on the collar of the ill-fitting coat. He jerked backward. The little man’s hands flew up wildly. His coffee-cup clattered inside the counter and crashed on the floor. His feet thumped on the rough pine boards. The stool tipped over. The olive-drab shoulders jolted against the wooden wall of the Last Chance.

“My, my, I have an awful time teachin’ yo’ manners,” observed Pete, evil in his sleepy gray eyes. “When you see a gentleman come in, you better offer him your chair, next time, stranger.” He righted the stool, drew it to the counter, and sat down. “Come on, you Sam. Let’s have a egg sandwich and some coffee. I’m a wild wolf from Battle Mountain. And this is my day to howl.”

The little man did not seem annoyed, or even fussed. He sauntered forward, smiling a little, and took his place at the end of the counter, near Chihuahua’s right hand. He rested his arms comfortably on the oak.

“Don’t mention it,” he said cheerfully.

“I was through, anyway.”

The cowpuncher searched his face swiftly for evidences of insolence, and seemed to find none. “That’s the idee, tenderfoot,” he patronized. “When yo’ come to a he-man’s country, you better keep yo’ place. And dodge trouble!”

The others were silent. It was evident to all of them that the lank young puncher was a bad one, inflamed by poisonous liquor, potentially as dangerous as a rattlesnake. He showed a characteristic of one type of half-drunken man—a bitter and unreasoning dislike of an utter stranger.

A still tongue: that was it. The same thought was in every mind. They must truckle to this deadly young bully, truckle and grovel, to get away from Rodeo without a tragedy. He was ripe for murder.

“Uh-huh,” agreed the little man. He surveyed Chihuahua through his amber glasses. “Yes; I try to keep my place. But I don’t like anyone to shove me out of it.”

“For God’s sake, Henry—” began another speaker, a larger one, at Pete’s left hand. His clothing was like the little man’s, except that he wore an army campaign hat instead of the ugly brown canvas.

Chihuahua Pete laid down his knife and fork. A sort of unbelieving jubilation in his manner and his repressed voice, he ignored the man sitting beside him and spoke to the smaller one:

“Say, you little runt, you meanin’ to hint anything?”

“Not hinting—trying to tell you,” was the good-natured reply. “So you’re a bad wolf, are you? And you’re Chihuahua Pete. I suppose they call you that because you skipped to Chihuahua to dodge the draft—hey, Peter! Keep your hand on the counter!”

There was a surprising change in the tone of the last sentence, a whip-like bite of command in it. Chihuahua’s right hand twitched involuntarily, and came up again.

“I don’t know what your game is, Henry,” said the other khaki-clad man, “but I’m playing it.” He tapped the counter gently with a black, squat, ugly-looking automatic. “Don’t reach for that gun again, kid, or I’ll blow your ribs out.”

Chihuahua Pete gave him a quick, sidewise look and again turned his attention to the little man, standing almost at his elbow. His face was a trifle pale. Sam and the travelers were immovable and tense.

“Thanks, Ed,” returned the little man placidly. “My game’s to teach this young bully some manners. He demonstrated on me just now. Turn about’s fair play.

“Now, you Chihuahua, I understand you’re a killer—shot a couple of men in the back awhile ago, or something like that. You’re all set to pick a

fuss with me and drop me. Well, you get your chance. But so will I. Guess we better have that revolver off you while I make my proposition. That's fair, isn't it?" He appealed to the others.

A border booze-peddler has his failings, but a yellow streak is not one of them. Sam spoke up promptly: "Fair enough, stranger. No snap-shootin' in this place while I'm runnin' it." He lumbered round the end of the counter, brushed by the little man and approached Chihuahua. "Pete, I'll just take your gun." The cowpuncher sullenly permitted him to withdraw the pearl-handled weapon. The larger khaki-clad man, without waiting to be asked, surrendered his automatic.

"All right," announced Sam, disposing of the weapons under the counter. "Now, stranger, what you got on your mind?"

"Well, our young friend seems to have his fighting-clothes on today. He wants to hear some popping. I'm willing to oblige, so long as two pop, and not one." He turned to Pete, who sat immovable, hatred in his narrow eyes.

"I see you have a rifle on your saddle. I happen to have one with me. You take your gun and get down behind that log I saw out here by the road as we came up. That gives you an advantage. I'll lie out in the open a couple hundred yards away, say.

"When these boys give the word, we shoot. Start advancing whenever you feel like it. We keep on shooting till one has enough, or"—he shrugged his shoulders—"somebody gets hurt."

"For God's sake, Henry!" burst out the larger khaki-clad man. "That's murder! Think of your family."

"He started thinkin' too late!" gritted the cowpuncher, sliding off his stool. He confronted Henry balefully for a moment. "Go get your gun, you little— You've bought somethin'! I aint killed a jackrabbit this week yet. But here's where I start."

"Just a minute," interposed Sam. "This play is on your own deal, stranger. But you ought to know what you're up against. Pete's a good rifle shot. He won the turkey-shoot over to Escandero last Christmas. You should be behind that log, not him. Or we'll dig up another one for you."

The little man was so ineffective, so insignificant-looking, so—so puttery, that they felt sorry for him. There was a chorus of assent from the travelers. He thanked them with a smile, then turned and led the way to the door.

“Oh, I’ll worry along with old Betsey,” he said cheerfully. “A log’s such a nuisance to carry when you start to run!”

Rodeo, smelling the trouble somehow, walked en masse up the railroad-track with the travelers. The town, looking for all the world like a movie-set, with its short line of one-story, false-fronted frame buildings, was left alone. The spectators took station midway between the antagonists, and perhaps fifty yards off the line of fire. The roadbed was somewhat above the general level, and they could see clearly.

Chihuahua Pete rested on one elbow behind the center of a fire-blackened log. The log was thick and substantial-looking. The little man, seemingly smaller and more helpless than ever, sprawled on the open sand. His coat was off; it lay beside him, a heap of cartridges in clips of five, upon it. His left arm was in the sling of his rifle. Both men watched the group on the railroad, for a signal from Sam was to start the battle.

“Say, this aint legal!” declared the derby-hatted drummer to Ed, the smaller man’s friend. “Why, this is duelin’, contrary to the laws of these here United States! Yes sir! Why don’t you do something about it? Why don’t you stop it? What did you let him goad this drunken cowpuncher for?”

Ed turned a bitter eye on him. “Do something?” he echoed. “Say, I’ve been trying to do something with that little worm for forty years! He jumps from one trouble to another like a mountain-goat! Always jumps out again, though; I’ll say that for him.” This in grudging afterthought.

The traveling man clawed his sleeve. “But this is murder!” he protested. “He hasn’t got a chance. This cowboy’ll stiffen him, first shot.”

Poor little Henry did seem pitifully exposed. From where they stood, he was clearly outlined in the bare sand. Ed grunted.

“The only way this bad man can hit him is shoot straight up in the air,” Ed explained impatiently. “Henry’s protected. There’s thirty inches of sand in front of his head. That isn’t what bothers me: I want to know what that little devil’s going to do. I’m worrying about the other guy.”

“Protected?” The traveling man squinted against the white, glaring light of sun on sand. “Say, he does seem to be behind a little ruffle, at that. But thirty inches—gosh! That isn’t much.”

“He’ll keep on fussing till he gets into a proper jam, sometime,” went on the gloomy Ed, following his own train of thought. “You can’t get away with funny-business forever. What’s that? Aw, thirty inches is plenty. This crazy man’s gun only shoots through fourteen.”

“Oh,” said the traveling man, opening his eyes. And “Oh,” he said again, in enlightenment. “He knows, hey? That’s the reason he looked at the cowboy’s gun and ca’ttridges, was it?”

“Sure,” replied Ed, in scorn at the obviousness of the question. He returned to the puncher’s original remark. “Do something with Henry? Say, you don’t know what you’re talking about! He’s as stubborn as a mule. You’d think being turned down by three examining boards’d be enough for anybody. Now, wouldn’t you—at his age? But no sir—”

“Ready?” roared Sam, and raised his arm.

A hurrying series of reports rolled out over the desert wastes. The cowboy’s gun spoke with the signal from the railroad track. The rifle was over the log; he worked it savagely. The spectators shuddered. It looked like certain death for Henry. Bullets kicked up the sand in front of his nose and to either side of him, and went tearing off down-country with the urgent whine of the ricochet. Ed chuckled.

“See?” he said gleefully to the traveling man. “Notice twigs falling from that dark-green bush about twenty yards in front of Henry? Thought he’d do something like that. He’s lined up behind it so this Chihuahua can’t see him at all. Has to feel for him.”

“But he can’t see either, can he?” protested the traveler, mopping the sweatband of his derby.

“You bet he can see! He’s low—under the branches. Now watch!”

Chihuahua’s gun was empty. He started to reload, after a swift glance in the enemy’s direction. There was a flat, brisk report from the little man’s rifle. The watchers saw the bullet raise a spray of sand in front of the log. Then the hoarse note of a ricochet, as though there were a frog in the throat of the bullet.

“Cripes!” ejaculated Sam. “She went through!”

“Of course,” retorted Ed. “Anyone could see that log was only a shell.”

The cowpuncher was flurried. A burst of splinters on his side of the log and a few feet from him, made him unsteady. The long magazine of his

sporting-rifle was only half-filled. But he threw the gun across the log and fired again, rapidly, frantically. This time, the onlookers noted, his aim was poor. The sand fountained up a long way from where the little man lay tucked in his hollow.

Again the quicker, sharper report of Henry's rifle—the long, splitting after-crack as the air closed behind the hurrying bullet, a dull interruption, and the ricochet in diminishing crescendo. Another report, and another, and another at intervals reasonably close, but unhurried.

“The son-of-a-gun!” crowed the admiring bootlegger. “See what he's doin'? He's pushin' Chihuahua right out from behind that log!”

They looked, slack-jawed and swaying in their intensity, and saw that it was true. Henry's first shot pierced the outer end of Chihuahua Pete's barrier, well beyond his left elbow. But with each succeeding report the bullets crept closer, until splinters showered the puncher.

Busy as he was reloading, he gave ground. When he tried to take aim over the log, a bullet nudged him. He shifted a little, sidewise, wriggling his body on his elbows, and brought the barrel down again. The log ripped wickedly beside his sleeve. He hunched again. And again the remorseless Henry drove him over.

The last move thrust his right leg out from the shelter. There was a report from the Springfield, a gout of sand from just under the cowpuncher's boot, apparently, and a yell from the puncher himself. He crawled to his feet, bringing his rifle up with him. He aimed half-heartedly at Henry, threw the gun down in fright, and ran away. He limped as he ran. Though that, of course, might have been due to his boots hurting him.

He fled directly to the rear, toward a friendly rise of ground. He was accompanied, shepherded and steered by the offerings of Henry. _Crr-ack_—and a bullet struck close beside him on the right. _Crr-ack_—and another threatened his toenails on the left. So it went, right and left, right and left, until the ridge intervened, and he flung himself headlong to safety.

A rush of cheering, babbling spectators engulfed the little man, who stood up to brush the sand off his clothes and put the remainder of his ammunition in the pockets of his ill-fitting jacket.

Ed's long legs brought him quickly. He grabbed his friend by the shoulder and shook him, half in fondness and half in vexation. “Henry,” he said, “Henry, you damned little scoundrel!”

Henry's face was alight with a big idea. "Say, Ed, I'm going to ask the N. R. A. to stage a moving-target thing at Perry next year—you know, a silhouette on a sledge going off down the range away from you. It's bully sport. Keeps you busy raising her for increasing distance."

"Say, _hombre_, you sure can shoot!" panted Sam, thrusting out a beefy hand.

"Of course he can shoot," agreed Ed, impatience merely a cloak to his pride. "He was instructor in rifle-practice during the war. And he's just won the Governor's Trophy at the State Rifle Association matches over at Mineral Springs."

Henry's face fell. "Shoot, nothing!" he denied. "See the first one? Say, it hit the ground a foot this side of that log—yes sir, a foot! I was afraid to let myself out after that. Might have hurt that cowboy if I did."

"Maybe it's the gun, Henry," suggested Ed thoughtfully. They were oblivious now to the milling spectators.

"Well, maybe it is," said Henry pensively. "I got an unaccountable in the National Individual—and a couple of threes in the Palma tryouts that looked all right when they left. Maybe old Betsey's gone, at last." He smoothed the stock of the squat brown rifle caressingly.

"Say, mister," began the derby-hatted traveling man, elbowing his way forward, "you're a professional, aint you? You give exhibitions around the country, don't you?"

"Hell, no," replied the little man. "I run a grocery-store in Palmdale. And my friend here's a banker. Say, you ought to see him shoot! He's the boy that—"

"Aw, shut up," interrupted Ed, dragging Henry off toward the stage. The driver was honking impatiently.

"I don't get it," complained the derby-hatted one, falling into step with Sam. "He says he aint a profesh. A grocer, and shootin' like that! An amateur!"

"Ayah," replied Sam, wiping the sweat off his fat red forehead with a once-clean apron. "I've seen 'em, them kind o' birds, froggin' around, shootin' at paper targets out in the cactus. And I laughed at 'em for crazy fools. But I don't laugh no more, _hombre_."

He looked after the pair ahead with a sort of proprietary pride. "Just ordinary citizens, but it shows what kind o' people us Americans are. Is it

any wonder we won that damn' war?"

Transcriber's Note: This story appeared in the January 25 issue of *Blue Book Magazine*.

*** END OF THE PROJECT GUTENBERG EBOOK GUN PLAY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.